

Jugal Kishore vs Union Territory Of Jammu And Kashmir ... on 10 July, 2024

Author: Rahul Bharti

Bench: Rahul Bharti

Sr. No. 194

HIGH COURT OF JAMMU & KASHMIR AND LADAKH
AT JAMMU

Case No.: - CRM(M) No. 369/2024
CrlM No. 776/2024

1. Jugal Kishore, age 38 years S/o Devi Ditta.
 2. Devi Ditta Age 64 years S/o Gian Chand
 3. Sarfo Devi Age 58 years W/o Devi Ditta.
 4. Kamal Kishore, Age 28 years S/o Devi Ditta
- All r/o Village Kathar, Arnia District Jammu.

.....Appellant(s)/Petitioner(s)

Through: Mr. Mohinder Singh, Advocate.

Vs

1. Union Territory of Jammu and Kashmir through Station Head Officer, Police Station Bari Brahamana.
2. Smt. Poonam Damathia W/o Jugal Kishore R/o Dyansar Bari Brahamana, Samba.

..... Respondent(s)

Through: None.

Coram: HON'BLE MR. JUSTICE RAHUL BHARTI, JUDGE

ORDER

10.07.2024

1. Petitioners No. 1 to 4 and respondent No. 2 are present in person and have assertively submitted that matrimonial relationship between the petitioner No. 1 and the respondent No. 2 stands restored and resumed.

2. Petitioners No. 2, 3 and 4 are parents and brother of the petitioner No. 1.

3. FIR No. 0001/2021 dated 01.01.2021 registered with the Police Station Bari Brahmana, district Samba for alleged commission of offences under section 498-A/504/34 of the Indian Penal Code, 1860 lodged by the respondent No. 2 had resulted in presentation of a police challan No. 27/2021 before the court of learned Chief Judicial Magistrate, Samba pending trial before the court of learned Judicial Magistrate (Additional Munsiff) Ist Class, Samba.

4. During the pendency of the criminal case, the matrimonial litigation obtaining between the petitioner No. 1 and the respondent No. 2 on matrimonial file No. 317/2021 with case No. 62/2021 before the court of learned Principal Judge, Family Court, Jammu under section 9 of the Hindu Marriage Act, 1980 came to be withdrawn on account of compromise effected between the parties on their own agreeing for restoration of their marital relationship. Guardianship proceedings also came to be withdrawn. The respondent No. 2 at her end came to withdraw her case bearing No. 1784/2022 under section 125 Code of Criminal Procedure from the Court of learned Principal Judge, Family Court, Jammu as is borne out from the order dated 02.12.2023 passed by the said court.

5. The restoration of marital relationship between the petitioner No. 1 and the respondent No. 2 has taken place pursuant to the written compromise deed dated 24.11.2023.

6. In the light of the aforesaid development, this is a fit case for exercising power under section 482 of the Code of Criminal Procedure.

7. For the reasons mentioned above, this petition is allowed. Final Police Report/Chargesheet No. 27/2021 read with FIR No. 0001 of 2021 dated 01.01.2021 is hereby quashed

8. Disposed of accordingly.

9. A copy of this order be sent to the court of learned Judicial Magistrate (Additional Munsiff) Ist Class, Samba for consigning the criminal case to record.

(RAHUL BHARTI) JUDGE JAMMU 10.07.2024 Naresh/Secy